

1939 SCC OnLine Rang 43 : 1939 Cri LJ 725

Rangoon High Court  
(BEFORE SHARPE, J.)

Nga Chit Tin and Others ... Accused;

*Versus*

The King ... Opposite Party.

Criminal Appeals Nos. 797, 872, 879, 968, 985, 1030, 1044, 1052  
and 1146 of 1938

Decided on January 31, 1939



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The Judgment of the Court was delivered by

SHARPE, J.:— I am dealing with these nine appeals together in a single judgment because although they are quite distinct cases, each was a case where the appellant was charged with murder and the same sections of the Penal Code fall to be considered, and for other reasons which will appear in a moment, it will be convenient to deal with them all together. As it was over three-quarters of a century ago that Ss. 299 and 300, Penal Code, 1860, became law, it may be thought that all that could be said by way of guidance in such cases has been said long ago, and that no more judgments are necessary in order to expound what may be called the fundamental principles of those two sections, as distinct from explaining the various phrases which go to make them up. But the state of affairs disclosed, not only in the present appeals, with all of which I was required to deal within a period of less than two months, but also in several other cases of the like nature which have come before me, lead me to believe that it will be useful if I set out in what I hope is simple phraseology and in what I believe will prove to be an easily understood form, the proper way, as it seems to me, in which those who have to conduct criminal trials in this country should approach the facts and apply the law in those cases where one person has, by doing some act, caused the death of another person. I will deal with the matter by stages:

*Stage 1.*— The stage requires that it shall be established to the satisfaction of the Court that the accused person has done an act by doing which he has caused the death of another person.

2. There is, of course, no difficulty in appreciating that is the starting point, but that is almost the only step in such cases which is invariably taken correctly. Even this first stage may give rise to difficulties, and such cases as *The King v. Abor Ahmed* <sup>(1)</sup>— I refer to the Full Bench decision—may have to be considered. But difficulties at this first stage are infrequent from the very next stage onwards, however, difficulties frequently appear to creep in, as they have done in all the cases now under appeal. *Stage 2.*— The trial Court must next consider whether that act on the part of the accused amounts to culpable homicide. More than one Judge of a Court of Session has considered that the second step is immediately to address his mind to the question whether the accused is guilty of murder as defined in S. 300, Penal Code. That almost invariably leads to confusion. Section 299 defines culpable homicide and S. 300 says that, except in certain specified cases, culpable homicide is, in certain events, murder. In fact it is not out of place to describe the two offences defined in Ss. 299 and 300 as “culpable homicide not amounting to murder” and “culpable homicide amounting to murder,”



respectively. It will thus be seen that the basis of murder under S. 300 is culpable homicide as defined in S. 299. Therefore it is necessary in every case of the class with which I am now dealing to inquire, as the second step in the proceedings, whether culpable homicide has or has not been committed by the accused, for unless it has been, no question of murder can arise. Therefore I will at once make clear what culpable homicide is.

3. Section 299 enacts that the doing of an act which causes death is culpable homicide if it is done either (i) with one of two intentions, that is to say, with the intention of causing either (a) death or (b) such bodily injury as is likely to cause death, or (ii) with the knowledge that death is likely to be caused by such act.

4. My headings (i) and (ii) are, it will be noticed, alternative, the one to the other, so that it follows that culpable homicide may be committed without any intention on the part of the accused, if he has the knowledge indicated under my heading (ii). Section 304 lays down what shall be the punishment for culpable homicide not amounting to murder: if the act is merely done with the knowledge that death is likely to be caused thereby and without either of the intentions mentioned in my heading (i), *supra*, that is to say, if the case falls under my heading (ii) *supra*, a lesser punishment is provided under

the latter part of S. 304. If it is not possible to hold in any given case that the act which caused death was done either with one of the two necessary intentions or with the necessary knowledge, culpable homicide (and, a *fortiori*, murder) has not been committed, and other sections of the Penal Code (for example, Ss. 321 and 322) must be taken into consideration with a view to seeing what, if any, other offence the accused has committed.

5. *Stage 3.*— Section 300 now, and only now, comes into operation. If it is established that an act which caused death was done either with one of the two intentions or with the knowledge necessary to cause that act to amount to culpable homicide, then, and then only, S. 300 comes into operation, and therefore the next thing to do is to ascertain whether such act was done either (i) with one of three intentions, that is to say, with the intention of causing either (a) death, or (b) such bodily injury as the offender knew to be likely to cause the death of the person to whom the harm was caused, or (c) such bodily injury as was sufficient in the ordinary Course of nature to cause death, or (ii)(A) with the knowledge that the act was so imminently dangerous that it must, in all probability, cause either (a) death, or (b) such bodily injury as was likely to cause death, *and*, (B) without any excuse for incurring the risk of causing either (a) death, or (b) such bodily injury as was likely to cause death.

6. It will have been observed that an intention to cause death is a part both of S. 299 and also of S. 300. Therefore, if in the earlier part of the inquiry, under S. 299, which I have called the second stage, it appears that the act was done with the intention of causing death, then stage 3 will present no difficulties, for, it at once amounts to murder, under S. 300, unless the case comes within one of the exceptions in the latter section. But if the act is not done with the intention of causing death, but is done either with what may be called the alternative intention—my heading (i)(b) under S. 299—or with the knowledge mentioned in S. 299—my heading (ii) under that section—then it must be ascertained whether it was done either with one of the intentions which I have marked as (i)(b) and (i)(c) under S. 300, or with the knowledge, but without the excuse, mentioned in that section. Hence, it will be seen that intention is not a necessary ingredient of murder. If the act is done with the knowledge that death is likely to be caused thereby, it is culpable homicide; and if it is done with the further knowledge that the act was so imminently dangerous that it must, in all probability, cause either death or such bodily injury as was likely to cause death, then that culpable homicide to murder. Thus knowledge is sufficient to establish murder without any intention whatever being proved. It will be seen in a moment that point was overlooked by the learned trial Judges in four of the appeals now before me. If the

culpable homicide is found to be murder, then it is necessary to consider more than one matter at stage 4; if it is not so found, then it remains culpable homicide and there is only one further matter to be inquired into, namely whether the right to private defence has been established by the accused. With that defence, I will deal in a moment.

7. *Stage 4.—(I) If the culpable homicide is murder:* If the prosecution has proved that the act either (a) was done by the accused

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with the intention of causing death, or (b) fulfilled one of the other requirements of S. 299 and also fulfilled one of the other requirements of S. 300, then it must further be considered whether on the facts of the particular case, the culpable homicide is brought down from the higher plane of murder, to which it has been raised, to the lower plane of culpable homicide not amounting to murder, by reason of the act having been done either (1) in an excessive but *bona fide* exercise of the right of private defence, or (2) whilst the accused was deprived of the power of self-control, by grave and sudden provocation, or (3) in a sudden fight in the heat of passion, or (4) in such circumstances as are mentioned in either Exception 3 or Exception 4 in S. 300, exceptions into which, having regard to the infrequency with which they are, or are likely to be invoked, I do not propose to go in this judgment. I have placed the question of the right of private defence at the head of the exceptions, although it is Exception 2 in S. 300, because the possibility of murder being reduced to culpable homicide through the exercise of such Tight is also bound up with the possibility of such right going so far as to afford a complete defence not only to a charge of murder but also to a charge of the lesser offence of culpable homicide. It is for this reason that I think that it will be convenient if I deal with the whole question of the right of private defence not merely limiting my remarks to cases where there is an excessive but *bona fide* exercise of the right.

8. *(II) If the culpable homicide is not murder:* If the culpable homicide is not murder, the only matter to be considered at stage 4 whether the accused has established (if such is his case) the right of private defence as a complete defence under S. 96.

(1) *The right of private defence:* The voluntary causing of death in the exercise of this right calls for a somewhat careful analysis of the legal principles involved, for the meaning and effect of Ss. 96 to 100 (both inclusive), 102, 103, 103, 106, 299 and 300, Penal Code, must all be considered together. As I have just indicated, the effect of a *bona fide* exercise of such right falls into two

categories: (i) it may afford a complete defence to what would otherwise be either murder or culpable homicide not amounting to murder, or (ii) in a case of culpable homicide which would otherwise be murder, it may render the accused not guilty of murder but guilty only of culpable homicide not amounting to murder.

(i) *The right of private defence as a complete defence*: The right of private defence will, in certain circumstances, completely absolve the accused from all guilt, even where the accused has voluntarily caused the death of another person. The words of S. 96, are simple: "Nothing is an offence which is done in the exercise of the right of private defence." It is clear from those words that no question as to the exercise of the right of private defence can arise unless and until the prosecution has proved what would, but for the exercise of this right, be an offence. If and when the prosecution have established that, then and then only the question of the right of private defence will arise.

9. The following are the circumstances in which the right of private defence will completely absolve the accused from all guilt, even when he has voluntarily caused the death of another person.

(A) Where the right is exercised in the private defence of the body of the accused, it affords a complete defence, (a) if the deceased was the actual assailant of the accused, and (b) if the defence committed by the deceased which occasioned the exercise of the right was of any of the six descriptions enumerated in S. 100, Penal Code. (B) Where the right is exercised in the private defence of the property of the accused, it equally affords a complete defence if the offence, the committing of which, or the attempting to commit which, by the deceased occasioned the exercise of the right was of any of the four descriptions enumerated in S. 103, Penal Code.

10. Such right of private defence commences, if it is of the body of the accused, as soon as a reasonable apprehension of danger to the body arises from an attempt or threat to commit the offence, though the offence may not have been committed, and it continues as long as such apprehension of danger to the body continues; if it is of the property of the accused, such right of private defence commences when a reasonable apprehension of danger to the property commences, and its continuance is regulated by the provisions of S. 105, Penal Code. But the right of private defence, whether of the body or of the property of the accused, will not afford a complete defence where there was time for the accused to have recourse to the protection of the public authorities, or where he inflicted more harm than was necessary for the purpose



of defence, or in those cases mentioned in the first two paragraphs of, and in the two Explanations to, S. 99, Penal Code. On the other hand, the accused, in the exercise of the right of private defence of the body against an assault which reasonably causes the apprehension of the death, may incur the risk of harm to an innocent person if he (the accused) be so situated that he cannot effectually exercise that right without incurring such risk.

*(ii) The right of private defence as a means of preventing culpable homicide which would otherwise be murder from being murder:*

A person accused of murder may be unable to establish such a right of private defence as I have just been considering and so fail to obtain an acquittal on that charge, yet, it is possible for him to be convicted only of culpable homicide not amounting to murder, if (A) he exercised his right of private defence, whether of person or of property, in good faith, although he exceeded the power given to him by law, and (B) he caused the death of the deceased against whom he was exercising such right of defence both (a) without premeditation and (b) without any intention of doing more harm than was necessary for the purpose of defence. I will now return to the other two exceptions to which I referred above, namely, these covering what are usually called “grave and sudden provocation” and “a sudden fight in the heat of passion.”

*(2) Grave and sudden provocation:* In order to bring a case within this exception, it is necessary that the following facts should be proved, that is to say, that (i) the offender did the act whilst deprived of the power of self-control, and (ii) he must have been so deprived by provocation (A) which was both grave and sudden, and (B) was neither sought nor voluntarily provoked by the offender as an excuse for killing or doing harm to any person, and (C) was not given by anything done either (a) in obedience to the law or (b) by a public servant in the lawful exercise of his powers as such, or (c) in the lawful exercise of the right of private defence. (Whether the provocation was grave and sudden enough to prevent the offence amounting to murder is a question of fact). It will be noticed that to establish a case of grave and sudden provocation, there must be proved my heading (i) plus (ii)(A), plus (ii)(B) and plus (ii)(C). If the above facts are established, the plea of grave and sudden provocation is established, and it will extend not only to causing the death of the person who gave the provocation but also to causing the

death of any other person if the offender caused the death of such other person by mistake or accident.

(3) *A sudden fight in the heat of passion*: In order to bring a case within the exception generally known as “a sudden fight in the heat of passion” it must be proved that the fact was due (i) without premeditation, and (ii) in a fight which was sudden, and (iii) in the heat of passion, and (iv) upon a sudden quarrel, and (v) without the offenders having either (A) taken undue advantage, or (B) acted in a manner which was either (a) cruel or (b) unusual. (It is immaterial in such cases which party offers the provocation or which commits the first assault). Here again, it will be seen that there are no facts amongst those to be proved from which there may be made, so to speak, a selection; all must be proved. Further, it should be noticed that the word “sudden” appears in two places in the Exception; not only the fight but also the quarrel must be sudden. If in a case of culpable homicide amounting to murder, it is not established that the case comes within one of the Exceptions mentioned above, then it remains a case of murder. I desire here to emphasize the fact that the question as to whether the case is within one of those exceptions does not arise for determination unless and until the prosecution has established a case of murder. If the prosecution has proved that culpable homicide (under S. 299), has been committed by the accused but has failed to prove that such culpable homicide amounted to murder (under S. 300), it is improper, and indeed useless, to consider whether any of the excluding factors are present, save the one which I have just mentioned. I know that to some persons I shall appear to be stating the obvious in what I have just said, but I have had to deal with more than one appeal in which the trial Judge has considered (and come to a conclusion on the point) whether one of the Exceptions mentioned in S. 300, applied, before he ever considered whether the culpable homicide in question amounted to murder.

11. I hope that the foregoing sets out in simpler language and in a more easily understood form than appears in the Penal Code, the essential features of a case where one person has, by some act of his, caused the death of another. It was not, of course, possible for those who framed the Code to



adopt the semi-diagrammatical form which I have done. It is not the purpose of the present judgment to discuss the question of the burden of proof in cases under Ss. 299 and/or 300, Penal Code, and I

purposely refrain from doing so, if only for the reason that the question has been very fully and recently discussed by a Full Bench of this Court in *Emperor v. U Damapala* [\(2\)](#). I will content myself with a mere reference to that case and to S. 105, Evidence Act. My main purpose in the present judgment has been to analyze the material sections of the Penal Code with a view to indicating the proper method of approach to the facts of any case in which the charge is one of murder. I will now turn from the general to the particular and examine the facts of the nine cases now under appeal and point out what appear to me to have been the errors into which the learned trial Judges respectively fell. In all these cases, as I have already said, the charge was one of murder.

#### *NGA CHIT TIN'S CASE*

12. In the first of these cases, the appeal of Nga Chit Tin, the facts are as follows:— The appellant, a young coolly, only 17 years of age, living in a small village, went along one evening with two young companions, aged only 14 and 15 years, respectively, to visit a man living on the edge of the same village. That same evening the deceased, who lived in a neighbouring village, about a mile away, paid a visit to a friend in the appellant's village. The deceased had a *dah* with him that evening; he had told a friend whom he met on the way that he was going to meet a *bo* (brave man) who lived in the southern quarter of the appellant's village, which is the quarter in which the appellant lived. On their way back from their visit, the three young men passed the house where the deceased was visiting; they were seen to do so by those who were sitting with the latter. The appellant also happened to have a *dah* with him that evening. As soon as he and his two companions had passed, the deceased left his friend's house; although he did so suddenly, on the pretext that he wanted to pass water, he took his *dah* with him. Outside, the deceased went straight up to the appellant and, after exchanging a few words with him, caught hold of him by his hand, dragged him a short distance and, when the appellant asked him (the deceased) to let go of his hand, the deceased struck the appellant a blow with his *dah*, at the same time challenging him to fight. At the hospital, where he was detained as an in patient for a week, the appellant was found to have an incised wound on his right arm, three inches long, a quarter of an inch wide, by a quarter of an inch deep. Having inflicted this injury, the deceased was on the point of cutting the appellant a second time, and he had his *dah* raised for the purpose, when the appellant struck the deceased with the *dah* which he (the appellant) was carrying. The deceased. I should mention, was 11 years older than the appellant, who, as I have already mentioned, is only 17 years of age. The injuries inflicted on the deceased by the appellant were an incised wound six inches long, half an inch wide, and

three quarters of an inch deep, on the left side of the head, and an incised wound, two inches long, a quarter of an inch wide, and only skin deep, on the inside of his right forearm. The former injury was caused by a blow struck with great force and was sufficient in the ordinary course of nature to cause death. The deceased was admitted to hospital about 20 hours after receiving his injuries and he died a week later, just after the appellant was discharged from the same hospital. There was every likelihood that the deceased's life would have been saved if prompt medical aid had been given on the spot.

13. Such are the material facts of the case and they are taken entirely from the evidence given by the witnesses for the prosecution. The appellant still frankly admits in this appeal, and has throughout admitted that he struck the blow which resulted in the deceased's death. He relied, however, and he still relies, upon his right of private defence. In his judgment the trial Judge dealt with the case in the following way: He first recounted the facts somewhat more fully than I have thought it necessary to do. He then referred to the medical evidence and speaking of the head injury inflicted on the deceased, said:

“A great force was required to cause it. The accused must therefore be held to have intended to cause death. But his plea was plea of self-defence.”

14. The learned Additional Sessions Judge then expressed the opinion—and I entirely agree with him—that the deceased began the attack with a *dah*, having first picked a quarrel with the appellant. The learned



Judge concluded:

“It was the deceased who picked the quarrel. It was he who attacked first and that was with a *dah*. He was a dangerous person in the village. I therefore hold that the accused has the right of private defence. But I think he exceeded the right. He received one injury only and that was a superficial one. But he delivered two cuts on the deceased after he had received such simple injury. One of the injuries given by him was sufficient in the ordinary course of nature to cause death. It was also caused with a great force. The accused therefore exceeded the right. So, the offence falls not under S. 302 but under Part 1 of S. 304.”

15. He convicted the appellant accordingly and ordered him to be detained in a Borstal Institution for five and a half years. In my

judgment to hold that merely to cause, even with great force, an injury sufficient in the ordinary course of nature to cause death necessarily, and itself, suffices to deprive a person of the right of private defence of his body is to ignore entirely the provisions of S. 100, Penal Code, 1860. But let me take the case by stages. *Stage 1*; There is no difficulty here, for, it is admitted that it was the appellant's act which caused the death of the deceased. *Stage 2*: I do not think that the appellant can be said to have had either of the intentions mentioned in S. 299 but he must, in my view, be taken to have known that death was likely to be caused by his act. *Stage 3*: I am satisfied that, the appellant had none of the intentions mentioned in S. 300. I shall in a moment point out that in my judgment the appellant has established his right of private defence and that I think that he had an excuse for incurring the risk of causing such bodily injury as was likely to cause death; it is therefore unnecessary to enquire whether he must be deemed to have had the knowledge mentioned in S. 300. Accordingly this culpable homicide was not murder. *Stage 4*: In this case it will be what I have called stage 4(ii). It appears to me that the appellant merely intended to cause such harm to the deceased as would prevent him from striking the appellant a second time and I am also prepared to find that the deceased's action in getting ready to cut the appellant a second time reasonably caused the appellant to apprehend that grievous hurt, if not, indeed, death, would befall him if he did not strike the deceased as he did, and I do not think that in the particular circumstances of this case he exceeded the power given to him by law. Such being my view of the facts, the defence put forward by the appellant, Nga Chit Tin, succeeds. I accordingly allow his appeal and set aside his conviction and sentence. I have already directed a release warrant to issue.

16. Before passing to the next case I desire to add this: Assuming that the learned trial Judge had been correct in holding, as he did that the appellant's plea of the right of private defence failed as a complete defence to the charge, he ought, as I have done, to have gone through the various stages which I indicated earlier in this judgment. It might well be that he would have come to the conclusion that culpable homicide had been committed; but until he was further satisfied that culpable homicide was murder, no question could arise as to the right of private defence being a means of preventing the culpable homicide which would otherwise have been murder from being murder (as distinct from affording a complete defence). And again how was the learned trial Judge able to say that, because the appellant exceeded the right of private defence, therefore the offence fell under Part 1 of S. 304? Whether culpable homicide not amounting to murder is punishable under Part 1 or whether under Part 2 of S. 304 depends

entirely, as I have already pointed out, upon whether the act by which the death was caused was done with one of the two intentions, or whether it was done with the knowledge, mentioned in S. 299. To that question the learned Judge never applied his mind in this case. The necessity for going through the various stages which I have enumerated can now, I think, be readily understood.

*NGA MAN NWE'S CASH*

17. In the second of the present appeals (*Nga Man Nwe's case*) the essential facts although lying within a narrow compass cannot be ascertained too easily. Apparently the appellant and the deceased had not been on speaking terms with each other for about three years. They had fallen out over the appellant paying unwanted attention to the deceased's widowed daughter. There is no doubt whatever that the deceased received an incised wound on the lower part of the left side of his chest, his sixth rib being clearly cut through lengthwise in the middle, and that injury was inflicted by the appellant is also beyond question. The deceased died a week later. According to the medical evidence the injury was sufficient in the ordinary course of nature to cause death, but was not necessarily fatal. Death was due to septic pericarditis



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and pleuropneumonia, the latter being the result of infection set up by the wound. The infection which was a contributory cause of the deceased's death, was introduced by a dirty wrapping being applied to the wound in the first place. Both men were armed with *dhamas* at the time of the occurrence. The learned Judge in his judgment jumped straight to the conclusion that, subject to the application of Exception 4 to S. 300, the case was one of murder because it must be presumed that the appellant gave the blow with the intention of causing bodily injury sufficient in the ordinary course of nature to cause death. In other words he jumped straight to what I call stage 3. Let me go through the proper stages myself.

18. *Stage 1*; In this case even this stage is not entirely free from difficulty. Did the appellant cause the death of the deceased by cutting him with his *dhama*? The medical evidence showed, in addition to what I have already stated, that only a few cases of septic pericarditis prove fatal and that, had the wound been clean, the deceased might have recovered. I think it is clear that the wound was not, clean because of the dirty wrapping which had been put upon it. There is no evidence to show when, how or by whom the dirty wrapping was applied. In

*Emperor v. Nga San Pai* <sup>(3)</sup> Leach, J. at the very bottom of p. 646, said:

“The real question was whether in the end the wound inflicted by the prisoner was the cause of death.”

19. In *The King v. Abor Ahmed* <sup>(1)</sup> when that case was before a Full Bench, the occasion was taken to point out that the head-note in *Emperor v. Nga San Pai* <sup>(3)</sup> was in terms which were too wide and should read:

“Where a person wilfully and without justifiable excuse inflicts a wound which is ultimately the cause of death of another person, he shall be deemed to have caused the death of that other person.”

20. I am satisfied in the present case that in the end the wound inflicted by the appellant was the cause of the deceased's death. I can accordingly now pass to the next stage.

21. *Stage 2*. At the end of his judgment the learned Sessions Judge said:

“As the blow with the *dah* was given by accused over deceased's heart, it must be presumed that he gave the blow with the intention of causing bodily injury sufficient in the ordinary course of nature to cause death.”

22. It will thus be seen that the learned trial Judge jumped straight to s. 300 (*Stage 3*). I must therefore myself deal with S. 299. In my judgment the appellant must be held to have intended to cause such bodily injury as was likely to cause death.

23. *Stage 3*: I agree with the learned trial Judge that the appellant “gave the blow with the intention of causing such bodily injury sufficient in the ordinary course of nature to cause death”. It was therefore a case of murder.

24. *Stage 4*: Immediately after the above-quoted words, the learned trial Judge said:

“But the act is, I consider, reduced from murder to culpable homicide not amounting to murder as it is covered by Exception 4 to S. 300, Penal Code. There is no evidence that accused premeditated the killing but rather that there was a sudden fight as result of a sudden quarrel; nor did the accused take undue advantage as both the parties were armed with *dahs*. The medical evidence establishes that deceased's wound was most probably caused by a deliberate cut.”

25. There are two main criticisms which I think it necessary to make in regard to the above quoted, the all important, part of the judgment of the trial Court. Firstly, in regard to the learned Judge's finding that the case is covered by Exception 4 to S. 300. The trial Judge said that there was “no evidence that accused premeditated the killing.” Whether

or not the killing was premeditated is not the first test to be applied when considering whether the exception of “a sudden right in the heat of passion” is applicable to any given set of facts. The first test is whether the act of the accused which caused the deceased's death was done without premeditation. The distinction is not to be ignored. Secondly, as regards the other essentials necessary to bring a case within this Exception, the learned Sessions Judge found not only that there was a sudden right as the result of a sudden quarrel but also that the appellant did not take undue advantage. The learned Judge, however, entirely failed to apply his mind either to the question whether the appellant acted in the heat of passion or to the possibly more important question whether the appellant acted in a manner which was either cruel or unusual.

26. Owing to such failure on the learned Judge's part, I must now myself consider whether the appellant can be said to have discharged the burden of proving the existence of circumstances bringing the case within this Exception. I have earlier in this judgment made a passing reference to S. 105, Evidence Act which expressly places



that burden upon the appellant; that section provides that “the Court shall” (not “may”) “presume the absence of such circumstances.” Applying my mind now, as I must do, to the matters which fall to be considered in this connection, I come, in the first place, to the question whether the act of the appellant was done without premeditation. That is the starting point. I regret that I am unable to persuade my self that the act of the appellant in striking the deceased on the chest with his *dhama* was done without premeditation. I agree with the learned Judge that the killing was not premeditated, but in my opinion the act which caused the killing was premeditated. It is therefore useless for me to consider this aspect of the case further, for whether or not I agree with the learned Sessions Judge that the act was done in a sudden fight upon a sudden quarrel without the appellant taking undue advantage, and whether or not, on applying any own mind to the matters which the learned Judge failed to consider, I come to the conclusion that the act was done in the heat of passion without the appellant having acted in a manner which was either cruel or unusual, the appellant has, in my judgment, failed to satisfy me that the act which caused the deceased's death was done without premeditation. Accordingly, having regard to the terms of S. 105, Evidence Act, I must presume the absence of such circumstances as would reduce the case from one of murder to one of culpable homicide. It follows, therefore, that in my judgment the

appellant is guilty of murder. He has had the good fortune to be convicted only of culpable homicide not amounting to murder. His appeal will be dismissed, as regards both conviction and sentence.

#### NAZIS ALI'S CASE

27. In the third of these appeals, the case of *Nazir Ali*, the facts are as follows: The appellant and the deceased were two coolies who were, at the time of the occurrence, both employed in loading *kabine* sticks on to a cargo boat lying along side a jetty at Akyab. The deceased was considerably older than the other coolies. The latter were teasing him, and one of them pulled his testicles, "playfully", as one of the witnesses described it. The deceased thereupon became angry and, after putting down one of the *kabine* sticks which he happened to have in his hand at the time, flapped the accused" (the appellant) "twice or thrice on the back." Then the appellant picked up the *kabine* stick which the deceased had just put down, the diameter of which is approximately the same as that of a rupee coin, and struck the deceased on the head with it. The deceased fell into the water, which thereabouts was only knee-deep, but was helped out. The other coolies were anxious to hush up the whole affair, and the matter was not reported to the Police for some time, with the result that the deceased did not receive medical treatment as soon as he might have done; he died about twenty-four hours after the injury had been inflicted upon him. From the medical evidence, it appears that the injury was not necessarily fatal, and, if prompt medical aid had been given, the life of the deceased could have been saved. The injury was, however, to use the words of one of the medical witnesses, "likely to cause death in the ordinary course of nature." The same witness said that, with the *kabine* stick which was in fact used, only moderate force was necessary to cause the injury. Those are the material facts as found by the learned Additional Sessions Judge, a finding in which all the assessors apparently concurred, and I see no reason for disturbing that finding. The appellant was charged with murder. The learned Additional Sessions Judge, however, came to the conclusion that the offence which had been committed was only culpable homicide, and that, as the case fell within the terms of the latter part of S. 304, the appellant was only liable for the lesser of the two punishments provided by that section. All the assessors thought that the accused was guilty only of voluntarily causing grievous hurt, an offence punishable under S. 305, Penal Code, 1860. Upon the above-mentioned facts what, if any, offence has the appellant committed? Let me go through the various stages enumerated earlier in this judgment.

28. *Stage 1.*— There is, in the first place, no doubt that it was the act of this appellant which caused the death of the deceased.

29. *Stage 2.*— Does it amount to culpable homicide? The learned

Additional Sessions Judge held that the appellant, when he struck the deceased on the head as he did, must have had the knowledge that death was likely to be caused by such act. In that finding, I concur. Therefore at least a case of culpable homicide was established.

30. *Stage 3.*— Is the case one of murder, as defined by S. 300? Some confusion has



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arisen, I think, in this case from the phraseology used by one of the medical witnesses for the prosecution. It will be seen that under heading (i)(c) of my analysis of S. 300, one of the matters which has to be considered is whether the accused intended to cause such bodily injury as was sufficient in the ordinary course of nature to cause death, while under heading (ii)(A)(b) of my analysis under the same section another matter, which may have to be considered, is whether the accused knew, from the imminently dangerous nature of his act, that it must, in all probability, cause such bodily injury as was likely to cause death. The first part of the sentence in the doctor's evidence to which I have called attention employs the words "likely to cause death", which come under my heading (ii)(A)(b), while the concluding words are "in the ordinary course of nature," which come under my heading (i)(c). In the course of his judgment the learned Additional Sessions Judge says:

"From the nature of the act done by the accused, *i.e.*, dealing a blow with the stick on the head, which is the vital part of a human body, it can be presumed that the accused had the knowledge that the injury inflicted by him was likely to cause death, but the question is whether he had any intention of causing the death of the deceased or to cause such bodily injury as was likely to cause death."

31. It will be appreciated that the learned Judge should at least have said "or to cause such bodily injury *as the accused knew* was likely to cause death." But the emission of the words which I have underlined (italicized) is, by comparison with the error to which I am about to call attention, a minor error on the part of the learned trial Judge. He continued:

"In every case of murder or culpable homicide not amounting to murder, the prosecution have to prove affirmatively the existence of the requisite intention or the existence of such facts as will justify the Court in presuming the existence of such intention. Of intention in the present case there is none."

32. A few lines further on he says that the evidence "clearly shows

the non-existence of intention to kill the deceased,” and he “therefore” he says, holds that the offence committed was only one of culpable homicide not amounting to murder. It will thus be seen that he entirely failed to consider the possibility of the blow having been struck by the appellant either (1) with the intention of causing either (a) such bodily injury as the appellant knew to be likely to cause the death of the deceased, or (b) such bodily injury as was sufficient in the ordinary course of nature to cause his death, or (2) with the knowledge that his act was so imminently dangerous that it must, in all probability, have caused either death or such bodily injury as was likely to cause death, which are headings (i)(b), (i)(c) and (ii)(A), respectively, under my analysis of S. 300. If the learned Additional Sessions Judge had considered this aspect of the case, I do not think that he could have avoided coming to the conclusion, to which I myself have come, namely that, putting it in the way most favourable to the appellant, he must have known that his act was so imminently dangerous that it must, in all probability, cause at least such bodily injury as was likely to cause death [my heading (ii)(A)(b) under S. 300].

33. Where knowledge on the part of an accused person is established under S. 300, a further question arises, which does not arise where one of the three intentions is established under that section. As will be seen from my analysis of S. 300, it now has to be considered in the present case whether the appellant struck this blow without any excuse for incurring the risk of causing such bodily injury as was likely to cause death. I am quite unable to persuade myself, upon the facts of this case, that the appellant had any such excuse. In my judgment, therefore, this is a case of murder, unless one of the appellant's pleas, either that of the right of private defence or that of grave and sudden provocation, is established.

34. *Stage 4.*— I will deal with those two defences. I will deal first with the plea of the right of private defence. It is possible, as I have already explained, for that plea to afford a complete defence to a charge of murder. On the facts of this case, however, I think it quite impossible even to suggest that the deceased assaulted the appellant in such a way that the latter had a reasonable apprehension that either death or grievous hurt would befall him. Therefore the appellant cannot be absolved from all guilt. The question remains: Can, what would otherwise amount to murder, be reduced to culpable homicide not amounting to murder? That can be done by establishing either such right of private defence as falls short of completely absolving the appellant of all guilt but which is otherwise sufficient for that purpose, or the alternative defence of grave and sudden provocation. In regard to the former, I am prepared to hold that the deceased's death was caused without premeditation on the part of the appellant [my heading

(ii)(B)(a) when dealing with

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the right of private defence], but it is quite impossible to hold that the appellant did not intend to do more harm than was necessary for the purpose of exercising the right of private defence of his person [my heading (ii)(B)(b) on that same topic.] In my judgment, therefore, there is no ground upon which the plea of the right of private defence in this case can succeed either to the extent of entitling the appellant to an absolute acquittal or even to the lesser extent of reducing what would otherwise be murder to culpable homicide not amounting to murder. I now turn to the defence of grave and sudden provocation, which, as I have already indicated, was also raised by the appellant at the trial. It is, to my mind, quite impossible to hold that the appellant was deprived of the power of self-control merely by being slapped, even two or three times, on the back. The deceased, it will be remembered, had, before slapping the appellant, put down the *kabine* stick which he had in his hand; not only is the inference to be drawn that the slapping was done by the deceased merely with his hand—indeed the word “slap” indicates, of itself, that no weapon whatever was used, but merely the accused's own hand—but from the memorandum of appeal it appears that the appellant says that it was only with his list, as he put it, that the deceased struck him. The appellant's deprivation of the power of self-control is the first fact which must be established: see my (i) under this heading, p. 11 *ante*. Therefore, it is quite useless to proceed further with a consideration of this defence. But even assuming that the appellant was deprived of the power of self-control, it would be impossible to hold on the facts of the present case that he was so deprived by grave and sudden provocation which was neither sought nor voluntarily provoked by him as an excuse for doing harm to the deceased. In any event I cannot persuade myself that being slapped on the back was sufficient provocation. It may have been sudden but it was certainly not grave. As will be seen from my analysis of this Exception, all the facts which I there set out must be established. In my judgment a defence of grave and sudden provocation cannot be sustained in the present case.

35. I have already said that my view of the matter is that, unless the plea either of the right of private defence or of grave and sudden provocation is established, this is a case of murder. As, for the reasons which I have just given, neither of those pleas has been established, the appellant ought, in my judgment, to have been convicted of

murder, and he has had a stroke of good fortune, not only in being convicted of culpable homicide not amounting to murder, instead of murder, but also in being sentenced, under Part 2 of S. 304, to only seven years' rigorous imprisonment. His appeal must be dismissed as regards both conviction and sentence.

*NGA. SET'S CASE*

36. I have already dismissed this appeal, but did not then give my reasons for doing so, intimating that I would give them on a future occasion. This I will now do. The facts in *Nga Set's case* appear to be that about 4 P.M. on March 16, last three men were drinking *tari* with the deceased (who was 51 years of age) at the latter's house, when they were joined by the appellant (a young man of 20) and another man called Maung Hla Pe, who asked the deceased to give him some *tari*. The deceased replied that there was no more *tari*, and thereupon Maung Hla Pe lost his temper and became abusive, and a fight ensued between them, that is to say, between the deceased and Maung Hla Pe. The appellant interfered in the fight, and stuck his knife into the abdomen of the deceased. The knife entered the abdominal cavity and penetrated one loop of the intestines; the injury so inflicted was sufficient in the ordinary course of nature to cause death and the deceased in fact died in hospital 12 hours later. The appellant admits that he was one of those present at the deceased's house at the time of the occurrence and, furthermore, that he interfered in the fight; he says, however, that he tried, but unsuccessfully, to stop the fight, and he denies that he stabbed the deceased. The learned Sessions Judge, after stating the above facts (but more fully than I think it necessary for me not to do) concluded his judgment as follows:

"On the facts established, I am satisfied that the accused was the assailant of Maung Kya (the deceased). In view of the medical evidence (which the learned Judge had referred to quite shortly; indeed I have already quoted in full his entire reference to it in his judgment) the offence seems clearly to be murder; but I do not regard it as a bad case of murder; there was no premeditation and no real intention to cause Maung Kya's death. The assessors have found in favour of a verdict of not guilty."

37. His conclusions could hardly be stated more briefly. I will deal with the case in



the stages indicated at the commencement of this judgment.

38. *Stage 1.*— Did the appellant do an act which caused the death of

the deceased? The learned Sessions Judge has found that he did, and as to that, it is, I think, sufficient for me to say that in that finding I entirely concur.

39. *Stage 2.*— Did the appellant do that act either with one of the two intentions, or with the knowledge mentioned in S. 299? The learned trial Judge held as will have been seen, that the appellant committed murder, but that he had no real (*sic*) intention to cause the deceased's death. It is impossible to know, and I do not think I ought to speculate as to, what the learned Judge meant by “no real intention.” I must, I think, take it that he held that the appellant had no intention to cause the deceased's death. The learned Judge, having come to that conclusion, ought then to have considered whether the appellant stabbed the deceased with his knife either with the intention of causing such bodily injury as was likely to cause death or with the knowledge that death was likely to be caused by his act [my headings (i)(b) and (ii) under S. 299] But the learned Sessions Judge entirely failed to consider that aspect of the case at all, and therefore never completed what I have called the second stage. I will therefore now state my own conclusions on this second stage. I am not at all sure that I agree with the learned Sessions Judge's finding (if indeed it be the fact that he intended to, and did, find) that the appellant had no intention of causing the death of the deceased, but I will assume in the appellants' favour that he (the appellant) had no such intention. Be that however, as it may, I have no doubt that the appellant, in inflicting the abdominal injuries which he did, intended at least to cause such bodily injury as was likely to cause death. Accordingly he is, at the very least, guilty of culpable homicide.

40. *Stage 3.*— Does that culpable homicide amount to murder? It will only do so if the appellant inflicted the injury with one of the three intentions, or with the knowledge (but without the excuse) mentioned in S. 300. Here, again, the learned Sessions Judge, having come to the conclusion (to which, as I have already said, he must. I think, be taken to have come) that the appellant did not intend to cause the death of the deceased, failed to consider any of the other alternative aspects of the case which would, if established, cause the culpable homicide committed by the appellant to amount to murder; he therefore never completed what I have called the third stage. Accordingly, I must now state my own conclusions on this third stage of the case also, and, for the purpose of arriving at such conclusions, I will continue to assume in the appellant's favour that he did not intend to cause the death of the deceased. Even starting this stage with that assumption in his favour, I find it impossible to resist coming to the conclusion not only that the injury inflicted by the appellant was sufficient in the ordinary course of nature to cause death—that, of itself, would be insufficient to support a

conviction for murder, as was pointed out by the Chief Justice in the recent case of *The King v. Abor Ahmed* <sup>(1)</sup>—but also that the appellant intended that the injury should be sufficient in the ordinary course of nature to cause death. In my judgment, therefore, the culpable homicide committed by the appellant in this case was murder.

41. *Stage 4.*— Does the case fall within any of those exceptions which reduce that murder to the lower plane of culpable homicide not amounting to murder? The only exception which can, in any way, be prayed in aid by the appellant is the one dealing with a sudden fight in the heat of passion. It is in this Exception that the words “without premeditation” occur—and this is the only place in either S. 299 or S. 300 where those words are used—and presumably the learned Sessions Judge had them in mind when he said “I do not regard it as a bad case of murder; there was no premeditation.” This again serves, I think, to show the confusion in the learned Judge's mind. A finding that the act was done by the appellant without premeditation is the first step towards bringing the case within the exception of a sudden fight in the heat of passion, and if the other matters necessary to bring the case within that exception are also established, and the exception is thereby brought into play, the effect of bringing the case within the exception will be to reduce what would otherwise be murder to culpable homicide amounting to murder. The way, however, in which the words “there was no premeditation” were introduced into the judgment now under appeal make it some what difficult to know exactly what was in the learned Judge's mind. I do not think that he was considering this exception when he used those words; I think that he was intending to put his finding that



the appellant did not intend to cause the deceased's death upon the basis that the act was done without premeditation. But, as those words appear only in Exception 4 in S. 300, I feel that I must give a decision about the applicability of that exception to the present case. There was no quarrel, either sudden or otherwise, as between the appellant and the deceased. Therefore as, in order to bring a case within this exception, it is necessary to establish *inter alia* that the act was done upon a sudden quarrel, it is unnecessary to look further and enquire whether there have been established any of the other facts which are essential for the purpose of bringing a case within this exception. I am quite satisfied that it is impossible to bring the present case within this or any other exception in S. 300. The culpable homicide committed by the appellant remains therefore murder.

42. Accordingly, in the result I agree with the learned Sessions Judge's decision that the appellant is guilty of murder. Although the learned Judge arrived at what I think was a correct conclusion upon the facts, it was a conclusion to which he jumped, if I may say so, without, so far as one can see from reading his judgment, in any way considering the undoubtedly difficult and complicated clauses, sub-clauses, exceptions, explanations and illustrations of Ss. 299 and 300, Penal Code. There remains the question of sentence. I am not at all sure that, if I had been the trial Judge and had to consider the appropriate sentence for this murder, I could have found any real reason for abstaining from passing a sentence of death. This appeal did not come before me for hearing until over two months after the learned Sessions Judge had passed judgment. That is the fact, whatever the reasons for the delay may be, I have not thought fit to open revision proceedings in this case with a view to a Bench considering the desirability of passing a sentence of death, because this Court not infrequently allows an appellant to benefit by Borne good fortune which he has had in the trial Court, and it almost always allows him to do so and refuses to substitute a sentence of death for a sentence of transportation for life, where, as in the present case, the appellant has believed for some weeks that his life will be spared. See both the reported cases in *Emperor v. Nga Bo Thin* [\(4\)](#) and the unreported case in Cri. Appeal No. 455 of 1938 *Tun Khine U v. The King* [\(5\)](#). This appellant Nga Set has undoubtedly benefited by a stroke of good fortune. I have allowed him to benefit by it by my merely dismissing his appeal.

#### NGA TON'S CASE

43. In the fifth case now under consideration the appellant, Nga Tun, and a companion, while taking a walk in their village one evening at sunset met the deceased and two other men walking in the opposite direction. There is, I think, no doubt that the appellant and his companion were, what I might describe as roystering and singing. As the two parties met, the deceased, who was convicted of an offence in connection with the rebellion a few years ago and was, at the time of his death, still considered a bully in the village, told the appellant that he was not behaving properly, whereupon the appellant replied "What does it matter?" As to what exactly happened at that stage, there is a conflict of evidence but I am certainly prepared to agree with the learned trial Judge that the fight was by no means one-sided. It appears to me, however, that the appellant was in no wise the aggressor, and that it was only after he had been assaulted by the deceased and his companion that he (the appellant), who had a small knife or dagger with him stabbed the deceased with it in the chest on the left side below the collar bone; that injury was sufficient in the

ordinary course of nature to cause death, and the deceased died within half an hour. The appellant then ran off and did not return to his village for about ten days. The appellant pleaded the right of private defence.

44. *Stage 1.*— The learned Judge took the first step correctly and found—and as to the correctness of that finding, there can be no doubt—that it was the act of the appellant which caused the death of the deceased. But the learned Judge then proceeded at once to Stage 4, and immediately considered whether the appellant had established the right of private defence, and, being of opinion that he had not done so, then discussed the possibility of it being a case of “a sudden fight in the heat of passion.” I have already pointed out that it is improper to consider the question of the exercise of the right of private defence unless and until the prosecution has proved what would, but for the exercise of that right, be an offence. The learned Judge



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in this case overlooked that matter and never considered for a moment whether any of the different intentions or the varying degrees of knowledge mentioned in Ss. 299 and 300 had been established. I must therefore now remedy his omissions.

45. *Stage 2.*— I myself do not think that the appellant intended to cause either death or such bodily injury as was likely to cause death, but I cannot avoid the conclusion that he must be taken to have known that death was likely to be caused by his act. He therefore committed at least culpable homicide.

46. *Stage 3.*— The next question is whether that culpable homicide was murder. I am prepared to hold that the appellant had not any one of the necessary intentions, but I think that he must also be taken to have known that what he did was so imminently dangerous that it must, in all probability, cause at least such bodily injury as was likely to cause death. Therefore I must now consider whether the appellant had any excuse for incurring the risk of causing such bodily injury as aforesaid. For reasons which will appear in a moment, I think that he did have an excuse for incurring that risk. The case therefore is not one of murder; at most, it is a case of culpable homicide not amounting to murder.

47. *Stage 4.*— As in the first of the present appeals, this stage will in this case be what I have labelled Stage 4(II). Has the appellant established the right of private defence as a complete defence under S. 96?

48. It is clear I think that the deceased first assaulted the appellant;

the question then remains: Was the offence committed by the deceased which occasioned the exercise by the appellant of the right of private defence of any of the six descriptions enumerated in S. 100, Penal Code? The only two of those descriptions which need be considered in the present case are the first two; the question therefore is: Did the deceased commit such an assault upon the appellant as might reasonably cause the apprehension that either death or grievous hurt would otherwise be the consequence of such assault? I think he did. It is unnecessary for me in this judgment to give my reasons for so thinking. It will suffice if I merely say that I think that this particular assault upon the appellant committed in the circumstances in which, and by the man by whom it was,—the appellant knew the deceased's record—did reasonably cause the appellant to apprehend that grievous hurt would be the consequence of the deceased's assault upon him unless he (the appellant) did something to defend himself. The Penal Code puts no restriction either upon the weapon, or upon the mode of using it, in those particular cases in which it provided that the voluntary causing of death is justified when acting in exercise of the right of private defence of the body, but of course, all the circumstances of the case must be considered together. In the present case, I have already held that it has not been established that the appellant did this act with any one of the intentions mentioned in Ss. 299 and 300, while I am satisfied that the deceased was a bully—and that the appellant knew that the deceased was a bully—who had committed a very serious assault indeed upon the appellant. In my judgment, upon the particular facts of this case, the appellant has established the right of private defence of his body as a complete defence to his act. No further point need therefore be considered in this case. I think the learned Sessions Judge was wrong in rejecting the appellant's plea, and his appeal is accordingly allowed. His conviction and sentence are set aside and he is acquitted. Before passing to a consideration of the next case, I desire to point out that the learned Sessions Judge came to the conclusion that although the appellant had not established his plea of the right of private defence, he had succeeded in bringing the case within the exception known as "as sudden fight in the heat of passion", and consequently he held that what would otherwise have remained on the higher plane of murder was restored to the lower plane of culpable homicide not amounting to murder. He found the appellant guilty and sentenced him under the first part of S. 304, Penal Code. I am quite at a loss to know how he arrived at the conclusion that the appellant was punishable under the first part, rather than under the second part, of S. 304, because he had never apparently considered, and he certainly never in terms decided, whether the act of the appellant was done with one of the two

intentions, or whether it was done only with the knowledge mentioned in S. 209.

*NGA SHWE KYAN'S CASE*

49. In this, the sixth, appeal now under consideration the facts can be stated quite shortly. One afternoon seven men, including the deceased, were taking tea together in the hut of one San Mying who was himself one of the party of seven. The



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appellant happened to pass by the hut at the time and, at Ban Mying's invitation, he went in and joined the party. Three different versions of what then took place were given by the various witnesses who were called, but the learned Sessions Judge thought (and I agree with him) that the probabilities were that what then happened was this: A certain amount of abuse was bandied about by various members of the tea party, in the course of which the deceased, from his squatting position, picked up a *dhama* from the floor and slashed with it at the appellant, who thereupon went outside the hut. The latter returned, however, armed with a stick and, from a standing position, struck the deceased with it on the head. The deceased sustained a fractured dislocation of the entire length of the coronal suture of his skull, the thickness of which was less than the normal quarter of an inch but more than an eighth of an inch, and from that injury he died in hospital about twelve or fourteen hours later. The material part of the judgment now under appeal is in the following terms:

“According to the witnesses, deceased was a very short tempered man ..... I hold that the accused Shwe Kyan in assaulting the deceased had received grave and sudden provocation and also in the course of a sudden fight. I do not think that this is a case where the accused can claim the right of private defence of the body as the accused went out first and re-entered the that after arming himself with the exhibit stick in order to assault the deceased Tun Kyaing. The accused was also intent upon a fight with the deceased after the latter had abused him and showed violence by picking up the *dhama* from, the floor.”

50. The learned Judge then found the appellant “guilty of culpable homicide not amounting to murder, an offence punishable under S. 304, Part 1”, although he had not come to any finding under S. 299, and sentenced him to seven years' rigorous imprisonment. Here again, it will be seen that the learned Judge straightway passed to a consideration of the possibility of the case falling within the exception

either of “grave and sudden provocation” or of “a sudden fight in the heat of passion.” All the first three stages were entirely ignored. Let me go through them myself.

51. *Stage 1.*— There can be no real doubt that the deceased's death was caused by the act of the appellant. (The medical evidence, I ought to mention, is in part, difficult to follow. The doctor said that “the injury found was sufficient in the ordinary course of nature to cause death... the wound certainly caused death. It is not ‘(sic)’ necessarily fatal.”)

52. *Stage 2.*— I now turn to consider whether the case is within the terms of S. 299. I do not think, taking into consideration all the circumstances of the case, that the appellant intended to cause either death or such bodily injury as was likely to cause death, but he struck the deceased on the head, and the stick he used was thirty inches long and weighed as much as 93 *tolas*. He must, however, be taken to have known that death was likely to be caused by his act, for there is no doubt that he struck the deceased on the head therefore the case is at least one of culpable homicide.

53. *Stage 3.*— Turning now to S. 300, I do not think the appellant had any of the intentions mentioned in that section, but he must, in my judgment, be held to have known that his act was so imminently, dangerous that it must, in all probability, cause at least such bodily injury as was likely to cause death. The question therefore remains to be decided, as it did in *Nga Tun's case* (the fifth and immediately preceding appeal), whether the appellant had any excuse for incurring the risk of causing such bodily injury as was likely to cause death.

54. That question is, as indeed it must always be, bound up with the right of private defence of the body, which is the present appellant's plea. Had then the appellant such a right? The important thing to bear in mind in this connection is the fact that, after being threatened—only, be it noted, threatened—by the deceased with the *dhama*, the appellant left the hut. It is not for a moment suggested that he was followed by the deceased. The appellant returned to the hut—he did that of his own free will—and then he struck the deceased on the head with this heavy stick. As the appellant was able to leave the hut quite unscathed, I find it impossible to hold that, as the time when he returned to the hut and struck the deceased, the alleged exercise of the right of private defence of the body by the appellant was occasioned by any offence committed by the deceased. Therefore the appellant has failed to bring himself within S. 100, Penal Code, and I agree with the learned Sessions Judge that the appellant's plea of the right of private defence of the body must fail as a complete defence to the charge. But the question of the right of private defence of the body does not end there, because it may yet prevent the culpable homicide

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from being murder, even if it cannot wholly excuse the appellant's act. It appears that this aspect of the case was also entirely overlooked by the learned trial Judge. It is impossible, however, upon the facts of this case—and, in particular, having regard to the fact that the appellant left the hut, and returned armed with this heavy stick—to hold that he was exercising his right of private defence of his body in good faith. That being so, it is useless to consider any of the other matters mentioned in Exception 2 to S. 300. In the result, therefore, it is clear, returning to the terms of S. 300, that the appellant had no excuse for incurring the risk of causing such bodily injury as was likely to cause death. It accordingly follows that the culpable homicide committed by him was murder unless he can bring the case within one of the exceptions of “grave and sudden provocation” or “a sudden fight in the heat of passion,” which are the only two exceptions which can now be applicable to the present case.

55. *Stage 4.*— I will deal with the former Exception first. As will have been observed, the learned Sessions Judge merely said: “I hold that the accused Shwe Kyan in assaulting the deceased had received grave and sudden provocation.” He never examined closely the various ingredients of this Exception nor any of the Provisos thereto, as set out earlier in this judgment. I myself have therefore done so, and it will suffice, I think, if I say that after carefully considering the possibility of Exception 1 of S. 300 being applicable to the present case, I am of opinion that the case does not fall within that Exception. I am unable, for one thing, to hold that even if the appellant was deprived of the power of self-control when he left the hut, he was still deprived of it when he returned. I cannot, therefore, find that the appellant did this act “whilst deprived of the power of self-control.” I must, therefore, now consider whether the other Exception mentioned—that of “a sudden fight in the heat of passion”—can be applied. I do not think it can, if only for the reason that there was no fight, which is an essential part of that Exception. The result is that, in my judgment, the appellant ought to have been convicted of murder. Like the appellants Nazir Ahmad and Nga Po Soe, this appellant has had a stroke of good fortune by which he will be allowed to benefit. I must point out that the learned trial Judge in this case punished the appellant under the first part of S. 304, and not under the second part of that section. I do not know why the learned Judge decided to sentence the appellant under the first part of that section: as he had never considered under which portion of S. 299 the case fell, it must have been just a matter of pure chance as to

which part of S. 304 he sentenced the appellant under. From any finding given above, it follows that in my judgment the appellant ought to have been sentenced under the second part of S. 304 and his conviction must be altered accordingly. I desire here to point out something which is apparently liable to be overlooked. A case of murder which, owing to the application of one of the Exceptions to S. 300, is reduced to culpable homicide not amounting to murder is punishable so far as imprisonment is concerned, with a maximum terms of ten years, if no intention is imputable to the accused under S. 299 but only the knowledge therein mentioned.

*NGA TUN MAUNG'S CASE*

56. The facts of the seventh case are as follows: One evening the appellant, the deceased, and another man were playing a game of *ket* (a kind of dominoes, apparently) for two pice a hundred, and during the course of the game a dispute arose between the appellant and the deceased. The man in whose compound the game was being played went to push the deceased outside through the gate. While he was trying to do this, the appellant got hold of a piece of firewood and went towards the deceased. The owner of the compound pushed them both outside, and they had a fight on the roadway during the course of which the appellant got hit on the head. The appellant went away saying that he was going to complain to the Ywagaung, and the deceased came back inside the compound. A little more than five minutes later, the appellant returned to the compound carrying in his hand a yoke-pin, which he had just borrowed from a friend in a house near the compound in question. He went up to the deceased and hit him on the head with it and then ran away. Later he was caught; when apprehended he said: "I hit him because he hit me." The deceased died in hospital about sixty hours later: he had sustained a soft contusion on the right side of the forehead, but no fracture of the skull was traced. Great force was necessary to cause the injury with the yoke-pin; the injury was sufficient



in the ordinary course of nature to cause death. The material part of the trial Judge's judgment is very short; it reads as follows:

"The exhibit yoke-pin is not heavy. It weighs only 18½ *tolas*. It is impossible therefore to hold that when the accused struck the deceased with it he had any of the intentions which bring the accused within the definition of murder. The skull was not even cracked. In the light of the considerations set out in *Baba Naya v.*

*The King* <sup>(6)</sup>. I say that the accused is guilty of culpable homicide not amounting to murder”

57. He then sentenced him to five years' rigorous imprisonment. It will be observed that this learned Sessions Judge did the same as some of the other Judges whose judgments I have had occasion to criticize in the course of this judgment, namely he went straight to S. 300, and, even supposing that he had gone there by way of S. 299, he entirely overlooked the fact that murder can be committed without the prosecution proving any intention on the part of the accused. Let me now take this case by stages myself.

58. *Stage 1.*— It is clear that the appellant did the act which caused the death of the deceased.

59. *Stage 2.*— I think that this is a case in which having regard to the fact that the appellant deliberately went and fetched this yoke-pin and returned after more than five minutes had elapsed and struck the deceased on the head with it with great force— I think that in view of those facts I must hold that the appellant intended to cause such bodily injury as was likely to cause death. Now comes S. 300.

60. *Stage 3.*— I am disposed to agree with the learned Sessions Judge that it is not possible to hold that the appellant had any of the intentions mentioned in S. 300, but the question remains as to whether the appellant must be taken to have known that his act was so imminently dangerous that it must, in all probability, cause at least such bodily injury as was likely to cause death, for, it is quite clear in this case that the appellant had no excuse for incurring the risk of causing such bodily injury as was likely to cause death. As I have already pointed out, the learned Sessions Judge entirely failed to consider this question. I am by no means sure that, if the matter were before me as the trial Judge, I would not answer that question in a way adverse to the appellant. I do not, however, propose to express my opinion upon the point, and for this reason, even if I were to be of opinion that the appellant must be taken to have known that his act was so imminently dangerous that, it must, in all probability, cause death, and therefore that he, having no excuse for incurring the risk of causing such bodily injury as was likely to cause death, was guilty of murder—even so, as there has been no cross-appeal under S. 417, Criminal Procedure Code, nothing can be done about it.

61. *Stage 4.*— In the foregoing circumstances this stage does not arise. It suffices therefore for me to say that there is absolutely no reason for disturbing the conviction for the lesser offence of committing culpable homicide not amounting to murder. What about the question of sentence? I have already pointed out that the learned trial Judge entirely ignored S. 299, and as a result of such omission, there is no finding by him as to whether the appellant did the act which caused the

deceased's death with the intention of causing such bodily injury as was likely to cause death or whether he did it with the knowledge that death was likely to be caused by his act. How, in the absence of any finding on that point, he was able to say that the sentence was to be passed under the second part of S. 304 rather than under the first part of that section I do not know. I myself have already indicated by my finding above that this was a case where the appellant ought to have been sentenced under the first part of S. 304, under which he may be punished with either transportation for life or ten years' rigorous imprisonment. He was, as I have already said, sentenced to only five years' rigorous imprisonment. That, in my opinion, was too light a sentence and, had the learned Judge considered p. 299, as he ought to have done, I feel sure that he would have come to the same conclusion as I have done and would have passed a more severe sentence than he did. But it is now over seven months since the appellant committed this offence. I do not propose at this late date to open revision proceedings and to call upon him to show cause why his sentence should not be enhanced. He, too, will be allowed to benefit by his good fortune at his trial. I dismiss his appeal, but alter the conviction to one under the first part of S. 304.

*NGA PO SEO'S CASE*

62. The learned Sessions Judge's judgment in this case is in a curious form. First he



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recited at length the deceased's injuries and then he stated what the appellant's story was. Then, almost at the end, he set out very briefly the evidence of one only of the witnesses for the prosecution and he concluded by saying that he felt

“compelled to the finding that accused's act in cutting the deceased was merely with the intention of causing such bodily injury as was likely to cause death”

63. And he found the appellant guilty of culpable homicide not amounting to murder. I will now state the facts as I find them. The appellant was the captain of a salt boat, of the crew of which the deceased was a member. According to the evidence of the witnesses for the prosecution, early one morning, while the boat was in the open sea off Tavoy Point, the deceased was asleep in the cabin when the appellant went in and struck him on the head twice with an axe. The appellant then ran out of the cabin, and after the crew, in accordance with his (the appellant's) orders, which he gave while still armed, had

lowered a boat into which he put his belongings, he paddled away in it towards the mainland. The salt boat made for Mergui and on its arrival there, the deceased was admitted to hospital, where he died eleven days later after developing tetanus. The doctor said in evidence that “tetanus was the sole cause of the deceased's death”; he also said that one of the deceased's head injuries “was likely to cause death.” The appellant admits that he cut the deceased. His story is that he had overheard members of his crew saying that, he (the appellant had complained of slackness and inefficiency among the crew, they (the crew) were going to the him up and throw him overboard; and that when, on the morning of the occurrence, the deceased and another member of the crew entered the appellant's sleeping quarters, the latter thought that those two men had come to carry out that plan. Accordingly, so goes his story, he picked up an axe which was lying near him and brandished it at the intruders, and in the course of doing so struck the deceased. The learned Sessions Judge rejected the appellant's story, and after carefully considering all the evidence, I can see no reason for saying that he ought not to have done so. The case must accordingly be dealt with on the basis that the appellant deliberately struck the deceased twice on the head with an axe while he (the deceased) was asleep.

64. *Stage 1.*— As in the second of the present appeals (*Nga Ma Nwe's* case), a question here arises as to whether the appellant's act caused the death of the deceased, as the latter died from tetanus occasioned, so the evidence shows, by the dirty rags with which the other members of the crew dressed his wounds. For reasons given by me when considering *Nga Man Nwe's* case, this appellant's act must be taken to have caused the deceased's death.

65. *Stage 2.*— The learned Sessions Judge has, and in my judgment quite rightly, found that the appellant intended to cause such bodily injury as was likely to cause death. It is therefore at least a case of culpable homicide.

66. *Stage 3.*— The learned Sessions Judge quite failed to deal with this all important stage as he should have done; in fact, he did not deal with it at all. I think that, on the particular facts of this case, it is impossible to avoid holding that the appellant intended to cause such bodily injury as he knew to be likely to cause the deceased's death. Accordingly, in my judgment, the culpable homicide which the appellant committed was murder.

67. *Stage 4.*— As it cannot be suggested that any of the Exceptions to S. 300 applies, it remains a case of murder. This appellant, like the appellants Nazir Ahmed and Nga Shwe Kyan, has had a stroke of good fortune in being convicted of something less than murder, and in not being sentenced to death. His appeal must be dismissed.

*PAN WA GYI'S CASE*

68. In this case the deceased sustained three injuries on the head and neck, apparently inflicted with a *dah*, from which injuries he died nine or ten hours later. All three injuries were obviously caused by the use of great force, and one of the blows struck was such that the *dah*, or whatever it was, cut through the entire thickness of the skull bone and partly the brain itself as well. There had been a drinking party after a Pwe. When the party broke up, a quarrel and fight took place between the appellant and the deceased. The latter used a loaded stick and the former a *dah*. The appellant himself also sustained some head injuries, for which he received hospital treatment as an in patient for fifteen days, after which he was discharged as cured. Two of the deceased's three injuries were sufficient in the ordinary course of nature to cause death. The learned trial Judge



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concluded his judgment in this way:

"The quarrel and fight between the accused and the deceased were no doubt sudden ones without premeditation or deliberate design to kill the other. But in the heat of passion, the accused cut the deceased with the *dah*, with the result that the deceased met his death. If, on any sudden quarrel, blows passed without any intention to kill or injure another materially, and in the course of the scuffle, after the parties are heated by the contest, one kills the other with the deadly weapon, it is culpable homicide and not murder. Therefore, in my opinion, the case falls within Exception 4 to S. 500, Penal Code, 1860. The medical evidence further shows that the death was accelerated by the delay in bringing the wounded man to the hospital and his life could have been saved if proper remedy and skilful treatment were given on the spot .... So it is very difficult to bring the case within S. 302, Penal Code, 1860. However from the fact that the accused had used a formidable weapon which is the exhibit *dah* on the vital part of the human body, it must be presumed that he did inflict the injuries with the intention of causing such bodily injury as is likely to cause death. Moreover, since the accused killed the deceased in the course of the sudden quarrel and fight in the heat of passion without premeditation and without any deliberate design for killing, I am of opinion, that the case falls within the purview of S. 304(1), Penal Code, 1860."

69. He then sentenced the appellant to ten years' rigorous imprisonment. The memorandum of appeal in this case is a very

lengthy one. I have considered the points raised in it, almost all of which are directed to showing that it was not through any act of the appellant that the deceased met his death. I have considered also the evidence, and as will appear in a moment, in my judgment, upon the evidence, I like the learned trial Judge, must hold that it was the appellant's act which caused the death of the deceased. I shall later on discuss shortly the evidence: at this point I will merely point out that the learned Judge, having held that the appellants act caused the deceased's death then jumped straight to a consideration of whether one of the Exceptions to S. 300, applied before deciding whether S. 300, was itself applicable. The unfortunately confused course of reasoning on the part of the learned Judge will be apparent from the extract from his judgment which I have quoted, without my saying anything further about it. I will content myself with pointing out only (a) that the learned Judge overlooked Explanation 2 to S. 299—it should be noted that is an Explanation to S. 299 and not to S. 300—and (b) that having in the earlier part of the above extract said “without any intention to kill or injure another materially,” he said, a little further on, that it must be presumed that the appellant inflicted the injuries “with the intention of causing death or with the intention of causing such bodily injury as is likely to cause death.”

70. *Stage 1.*— The major dispute in this case is in regard to the question whether the appellant caused the injuries to the deceased which resulted in the latter's death. The evidence for the prosecution on this part of the case falls in the main into five groups: (1) The evidence of an alleged eye-witness, Aung Myint; (2) the evidence of witnesses who say that the deceased, almost immediately after the occurrence denounced the appellant as his assailant; (3) the evidence of witnesses who say that the deceased, later on, on arrival at Kyebin landing stage when he was being taken to Sandoway, again denounced the appellant as his assailant; (4) the evidence of a witness who says that the appellant orally admitted to him that he had struck a man that night; and (5) the evidence of a village headman who detailed the facts related to him by the appellant's then co-accused (who was acquired in the Sessions Court) regarding the cutting of the deceased by the appellant. The learned Additional Sessions Judge carefully considered and discussed in his judgment the above five groups of evidence. He rejected the evidence comprised in the first of those two groups, but accepted the remainder. I entirely agree that Aung Myint's account of what he says he saw is worthless it is clear that he was far too drunk to know what was happening on the night of the occurrence; I also accept the conclusion arrived at by the learned trial Judge in regard to the second, third and fourth groups, and for the reasons which he gave, save that he ought not to have admitted in evidence the deposition of

Maung Po Tun recorded in the committing Court, as there is nothing on the record to show that such evidence came within the terms of S. 33, Evidence Act: the bare statement “admitted under S. 33, Evidence Act,” signed by the learned trial Judge, which appears on the face of the deposition is insufficient. But, as a matter of fact that evidence, although wrongly admitted, was in the appellant's favour, so no harm has been done. In regard to the fifth group, the headman's evidence could not be taken into consideration if only for the reason that the so-called confession of the appellant's then co-accused did not implicate the person confessing to the same extent as it implicated



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the appellant. In the result there is at least the evidence comprised in the third and fourth groups, which is sufficient, if accepted, as it was by the learned trial Judge and as it is by me to support a finding that it was the act of the appellant which caused the death of the deceased.

71. *Stage 2.*— I agree with the learned trial Judge that the appellant must be held to have intended to cause such bodily injury as was likely to cause death.

72. *Stage 3.*— This stage the learned trial Judge entirely omitted. I think it quite impossible to avoid holding that the appellant intended that the bodily injury which he then inflicted should be sufficient in the ordinary course of nature to cause death. Therefore the culpable homicide committed by the appellant was raised to what I have described as the higher plane of murder.

73. *Stage 4.*— Have any facts been proved which will restore that murder to the lower plane of culpable homicide not amounting to murder? I will deal at once with the case from the point of view of the possibility of “a sudden fight in the heat of passion.” I do not propose to go in the details of the evidence on this point and it will suffice if I say that in my opinion, all the essentials necessary to bring into play Exception 4 of S. 300 are present in this case. This is, therefore, a case of culpable homicide not amounting to murder and as the act was done by the appellant with one of the intentions specified in S. 299, the offence is punishable under the first part of S. 304. The sentence passed in this case does not appear to me to be unduly excessive. This appeal must be dismissed. I have dealt with the facts of these cases comparatively shortly because I do not desire that this judgment should ever be taken as in the smallest degree binding upon any Court in the future so far as facts are concerned. It may well be that another tribunal would have found the facts of some of these nine cases in a

different way. But I think, and certainly hope that my methods of approach to the facts of these cases have been along correct lines. Questions of knowledge, intention, and the like—such questions as have arisen in these nine appeals—are always essentially questions of fact falling to be decided solely upon the particular facts and circumstances of each individual case. The sole object of this judgment apart from disposing of these nine appeals, is to afford some guide to the legal principles involved in cases where the charge is one of murder, and to indicate a correct method of approach to the facts and circumstances of such cases, so that a proper decision can be arrived at upon the particular facts and circumstances of each individual case of that description. The results of this judgment are (a) that the appeals of Nga Chit Tun (No. 797) and Nga Tun (No. 985 are allowed, their convictions and sentences are set aside, and they are acquitted; (b) that the convictions of Nga Tun Maung (No. 1044) is altered to one under the first part, instead of under the second part of S. 304, his sentence stands, and subject to the alteration I have just mentioned, his appeal is dismissed; (c) the appeals of all the other appellants are dismissed, both as regards convictions and sentences.

S.

*74. Order accordingly.*

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<sup>(1)</sup> (1937) Rang. 384 : 171 Ind. Cas. 574 : AIR 1937 Rang. 396 : 38 Cr. L.J. 1097 : 10 R Rang. 165 (FB).

<sup>(2)</sup> 14 R 666 : 168 Ind. Cas. 193 : AIR 1937 Rang. 83 : 38 Cr. L.J. 524 : 9 R Rang. 340 (FB).

<sup>(3)</sup> 14 R 643 : 165 Ind. Cas. 245 : AIR 1936 Rang. 442 : (1936) Cr. Cas. 866 : 37 Cr. L.J. 1119 : 9 R Rang 199.

<sup>(4)</sup> (1937) Rang. 169 : 171 Ind. Cas. 285 : AIR 1937 Rang. 254 : 38 Cr. L.J. 1051 : 10 R Rang. 141.

<sup>(5)</sup> 178 Ind. Cas. 298 : AIR 1938 Rang. 331 : 40 Cr. L.J. 49 : 11 R Rang. 223.

<sup>(6)</sup> 5 R 817 : 109 Ind. Cas. 215 : AIR 1928 Rang. 64 : 29 Cr. L.J. 487.

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